Narender Kumar Sharma vs State (Nct Of Delhi) on 5 October, 2007

Equivalent citations: I(2008)BC600

Author: Shiv Narayan Dhingra

Bench: Shiv Narayan Dhingra

ORDER

Shiv Narayan Dhingra, J.

1. This application under Section 438, Cr. P.C. has been made for anticipatory bail by the applicant, who is an accused of offence under Sections 406/408/409/420/ 467/468/471/379/380/120B read with Section 34, IPC. The accused was an employee of the complainant. Complainant was an illiterate person and the accused was looking after the accounts of the complainant. It is alleged that accused with the intention to play fraud upon the complainant diverted several cheques issued by the complainant, at the trust and faith of the accused for depositing tax, etc., in the name of bank (yourself), to his own accounts by committing and changing the amount of cheques and making endorsements on the back of the cheques. The complainant gave the details of the different cheques issued; one cheque was for Rs. 6,785/-which accused tampered and made of Rs. 60,785/- similarly, another cheque of Rs. 8,738/- was tampered and made of Rs. 80,738/- and likewise. The other cheques were of different amounts. Deposit of these cheques into the accounts of the accused is an undisputed fact since this fact has been verified by the bank. Committing of forgery, etc. is yet to be interrogated, since accused is evading arrest. It is submitted by the Counsel for the accused that the complainant in fact was using accused for his clandestine acts and the accounts were opened by accused in his own name at the behest of the complainant and earlier also from these accounts Pay Order of Rs. 1,25,000/- was got prepared by complainant for his property deal. He placed on record a certificate from the bank showing that Pay Order of Rs. 1,25,000/- was prepared debiting account of the accused. He submitted that the cheques, in question, were given to the accused for depositing in his account and no fraud was played by the accused. The cheques were given because the accused had not been paid salary for quite long time.

2. Since the cheques were in the name of 'yourself this Court considered that normally such cheques are issued in favor of bank and the cheques cannot be deposited in any other account by the bank and some bank employee must have been involved in this case. The IO of this case made inquiries from the Sr. Manager of the bank who informed that the cheques in whose payee is shown as 'yourself are dealt with by the bank as per the instructions of the client. If the client gives instructions that the cheques are to be deposited in some account, the cheques arc deposited in that account, if the client gives instructions that a draft is to be prepared or tax is to be paid, the cheques

are deposited in the tax account or a draft is given, otherwise, there is no account maintained by the bank in which cheques of 'yourself without any instructions can be deposited. The explanation given by the Bank was logical.

3. The cheques which were issued by the complainant were perused by me. A perusal of these cheques would show that in the cheques the payee was shown as 'yourself but on the back of the cheque there was stamp of the firm of the complainant and signature and on the top of the stamp, there were instructions in English language that the cheque be deposited in the account of accused. The allegations of the complainant is that he never gave these instructions. If he wanted to deposit the amount in the accused's account he would have given cheques in the name of the accused himself. Apart from the cheques mentioned in the complaint, four more cheques have also been discovered by the complainant which were similarly deposited in the account of the accused. The accused has failed to explain that for what purpose the money was given to him and why these cheques of 'yourself' were deposited in his account.

4. Apparently, forgery has been committed by writing instructions at the back of the cheques and by changing the figures and amounts of the cheques. The total cheating is of more than Rs. 4 lacs. I consider that it is not a fit case for grant of anticipatory bail. The application is dismissed.